



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

FEB - 4 2005

DOT-E 14098

EXPIRATION DATE: May 31, 2005

1. GRANTEE: Integrated Environmental Services, Inc.
Atlanta, GA
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the one-time, one-way transportation in commerce of fluorine, compressed, in 15 non-DOT specification portable tanks manufactured from Monel. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 column 8(c) in that the transportation of fluorine in a bulk packaging is not authorized, except as provided herein.
5. BASIS: This emergency exemption is based on the application of Integrated Environmental Services, Inc. dated December 20, 2004, and supplemental information dated January 28, 2005, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant economic loss.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

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Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Fluorine, compressed	2.3	UN1045	N/A Hazard Zone A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed are 15 non-DOT specification portable tanks manufactured for the storage and on-site transport of fluorine. Each tank is in conformance with Integrated Environmental Services, Inc. drawings and calculations on file with the Office of Hazardous Materials exemptions and Approvals and the following design criteria:

Material of Construction	Monel, high nickel alloy steel
Design pressure (MAWP) ¹	125 psig
Wall thickness	0.24 in (min) plus corrosion allowance
Water capacity	280 gallons (65,000 cu in)
Dimensions (external)	Length 63.5 inches Diameter 39 inches

¹ The MAWP was calculated according to the formulas contained in Section VIII, Division 1 and the Lethal Service Requirements of the ASME Code. The tanks are not ASME Code "U" stamped.

b. TESTING - Prior to filling, each tank must be:

(1) given a complete external visual inspection. The tank may not be filled and transported if the visual inspection reveals corroded or abraded areas, defects in welds, and any other condition that might render the tank unsafe for transportation service; and

(2) pressure tested to MAWP using dry air or nitrogen as specified by Section VIII, Division 1 of the ASME Code for pneumatic pressure tests.

c. OPERATIONAL CONTROLS:

(1) The pressure in the tank may not exceed 110 psig at 70°F and the tank may not contain more than 35 pounds of fluorine.

(2) Transportation must be by private or contract motor carrier in exclusive use of Integrated Environmental Services, Inc.

(3) Transportation is authorized one-time, one-way from San Clemente, CA to Tulsa, OK.

(4) The portable tanks must be lifted by lifting slings or by skids using a forklift. The slings or forklift must have a weight rating sufficient for the portable tanks.

(5) All valves and fittings must be protected.

(6) The 15 tanks specified in paragraph 7.a. above must be transported in two enclosed van-type vehicles, securely blocked and braced to prevent shifting during transport. The transport vehicle must be marked and placarded in accordance with Subparts D and F of Part 172.

8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be maintained at the facility where the package is offered for transportation.

b. Each portable tank must be marked "DOT-E 14098" as required by §§ 172.302 (b) and (c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this exemption must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this exemption are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this exemption must notify the Associate Administrator for Hazardous Materials Safety -- OHMEA, in writing, of any incident involving a package, shipment or operation conducted under terms of this exemption.

Issued in Washington, D.C.

Robert A. McGuire

Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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DATE

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: PTolson